

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maura Roche	Team: Squad #10	CCRB Case #: 201901501	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/08/2019 6:11 PM	Location of Incident: Over the telephone	18 Mo. SOL 3/25/2021	Precinct:		
Date/Time CV Reported Mon, 02/11/2019 2:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/19/2019 11:07 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Hugh Mackenzie	00000	925647	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Hugh Mackenzie	Abuse: Lieutenant Hugh Mackenzie refused to provide his name to § 87(2)(b)	A . Unsubstantiated
B . LT Hugh Mackenzie	Abuse: Lieutenant Hugh Mackenzie threatened to arrest § 87(2)(b)	B . Unsubstantiated

Case Summary

On February 11, 2019, § 87(2)(b) filed this complaint with IAB by phone. It was received at the CCOB on February 19, 2019, under IAB original log number 19-5701.

On February 8, 2019, at approximately 6:11 p.m., § 87(2)(b) received a phone call on his cell phone from Lieutenant Hugh Mackenzie of the 52nd Precinct. Lieutenant Mackenzie identified himself as an officer from the 52nd Precinct and asked § 87(2)(b) if he intended to pursue a complaint that he had filed against officers. § 87(2)(b) told Lieutenant Mackenzie that he was going to pursue the complaint and asked him two times who he was. Lieutenant Mackenzie allegedly failed to tell § 87(2)(b) his name (**Allegation A: Abuse of Authority – Refusal to Provide Name, unsubstantiated**). Lieutenant Mackenzie then allegedly told § 87(2)(b) “Well we can both play these games, cause you got caught with 35 bags of weed, not two” (**Allegation B: Abuse of Authority – Threat of arrest, unsubstantiated**). § 87(2)(b) immediately hung up the phone without saying anything else.

No arrests or summonses resulted from this incident. There was no video or audio footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Hugh Mackenzie refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: Lieutenant Hugh Mackenzie threatened to arrest § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b) (BR 01) stated that on February 2, 2019, § 87(2)(b) was arrested for § 87(2)(b) (BR 02). On February 4, 2019, § 87(2)(b)'s attorney told him that he had only been charged with § 87(2)(b). On February 5, 2019, § 87(2)(b) contacted IAB and filed a complaint about the circumstances surrounding his arrest, which included allegations of a vehicle stop, vehicle search, and a strip-search. The IAB officer told § 87(2)(b) that his complaint would be assigned to an officer from the 52nd Precinct for further investigation.

On February 8, 2019, § 87(2)(b) got a call from a restricted phone number (BR 03). § 87(2)(b) answered the phone, and a male stated that he was calling from the 52nd Precinct but did not tell § 87(2)(b) his name. The officer asked § 87(2)(b) if he wanted to proceed with his complaint. § 87(2)(b) asked, “Who is this?” The officer did not answer § 87(2)(b)'s question and asked again if § 87(2)(b) wanted to go through with his complaint. § 87(2)(b) said, “Yea, I’m going through with the complaint. Who is this?” The officer replied, “Well we can both play these games, cause you got caught with 35 bags of weed, not two.” The officer then started to say something about § 87(2)(b)'s car, but, before he could finish, § 87(2)(b) hung up the phone because he was scared that the officer was threatening to do something to make his arrest more serious.

Lieutenant Mackenzie (BR 04) stated that approximately two days prior to February 2, 2019, he received a complaint from § 87(2)(b) alleging that officers told him they were arresting him for § 87(2)(b) but that he had never been charged with that, that his car had been released to an unauthorized individual, and that he had not been given a voucher for his car. Lieutenant Mackenzie had investigated the case and determined that § 87(2)(b) had been arrested for § 87(2)(b), but that the

District Attorney had declined to bring charges for § 87(2)(b) and only charged § 87(2)(b) with § 87(2)(b). He also determined that the car § 87(2)(b) had been driving at the time of his arrest was not registered to § 87(2)(b). A voucher for the car was prepared (BR 05), and it was released to the registered owner.

On February 8, 2019, at approximately 6 p.m., Lieutenant Mackenzie was assigned to administrative duties at the 52nd Precinct stationhouse. He reviewed § 87(2)(b)'s case file and placed a call to § 87(2)(b) to inform him of the findings of his investigation. As soon as § 87(2)(b) answered the phone, Lieutenant Mackenzie said, "This is Lieutenant Mackenzie from the 52. I don't work for the CCRB. I don't work for IAB. I'm investigating your case." § 87(2)(b) immediately answered, "The 52 is a bunch of grimy niggers." Lieutenant Mackenzie did not engage with this statement and started to explain to § 87(2)(b) that his car had been vouchered and released to the registered owner. Before he could finish, however, § 87(2)(b) said, "Fuck you. Talk to my attorney." § 87(2)(b) then hung up the phone. Lieutenant Mackenzie had no further contact with § 87(2)(b).

Lieutenant Mackenzie denied ever failing to provide his name to § 87(2)(b) and stated that § 87(2)(b) never asked him for his name. Lieutenant Mackenzie also denied ever saying, "Well we can both play these games, cause you got caught with 35 bags of weed, not two," or any similar statements intimating that he would add or augment charges to § 87(2)(b)'s existing arrest. Lieutenant Mackenzie added that calls to civilians were not recorded.

An IAB investigation found that Lieutenant Mackenzie "followed proper department protocol and procedures" while investigating this complaint and exonerated the allegation of refusal to provide § 87(2)(b) with his name. IAB did not investigate a threat of arrest allegation. There was no audio of the conversation attached to the IAB investigation. Lieutenant Mackenzie's statement to IAB was consistent with the statement he provided to the CCRB (BR 06).

§ 87(2)(g)
It is therefore recommended that **allegations A and B** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) has been a party to one other CCRB complaint and has been named as a victim in seven allegations (BR 07).
 - § 87(2)(b)
- Lieutenant Mackenzie has been a member of service for 19 years and has been a subject in five complaints and eight allegations, two of which were substantiated.
 - 200505991 involved substantiated allegations of a question and search (of person) against Lieutenant Mackenzie. The Board recommended charges, and the NYPD imposed instructions.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- On March 13, 2019, a Notice of Claim was submitted to the Comptroller's office, the results of which will be added to the case file upon receipt (**BR 08**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date